



POLICE DEPARTMENT

July 10, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202300635 (Incident Date: January 14, 2023) regarding Police Officer Richard Castellano, Tax No. 957429 (DADS No. 2024-30742)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202300635, pertaining to Police Officer Richard Castellano. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Officer Castellano would be detrimental to the Police Department's disciplinary process.

In this case, officers conducted a lawful car stop of the complainant for a defective headlight, and requested his license. The complainant refused to provide his information, despite several requests from the officers. In an effort to de-escalate the situation, Police Officer Flores confirmed that there was a deficiency in the headlight and informed the complainant of the reason for the stop. The complainant continued to refuse to provide his identification, stating he was not required to provide said documents because he was "traveling" and not "driving." The officers continued to order the complainant out of the vehicle, to which he continued to refuse. After Police Officer Flores conferred with his supervisor, the officers forcefully removed the complainant from the vehicle, to which he continued to resist. The officers are eventually able to remove the complainant to the ground, however he continued to resist arrest by flailing his arms, pulling them away from the officers' grasps, and attempting to tuck them under his person. Police Officer Castellano stated at one point, the complainant grabbed him by the neck and squeezed, and also grabbed his groin. Police Officer Castellano utilized multiple hand strikes while the complainant was resisting, in order to place him into custody. The CCRB found that two of the hand strikes employed by Police Officer Castellano were improper, and substantiated a chokehold allegation. The Police Commissioner disagrees and believes Police Officer Castellano utilized the minimum force necessary to place the complainant into custody.

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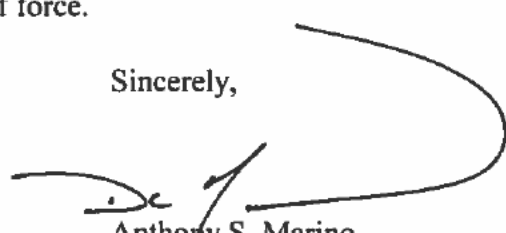
The Police Commissioner has determined the hand strikes employed by Police Officer Castellano were proper to place a violently resisting person into custody. Police Officer Castellano stated that the complainant reached up towards his neck and applied pressure, and also grabbed his groin. Police Officer Castellano stated he applied multiple hand strikes to gain compliance and to stop the complainant's physical actions towards him and place him into custody. The Police Commissioner has determined these actions were proper. Once the complainant was placed into custody, all force ceased. With respect to the chokehold allegation, the body worn camera footage shows Police Officer Castellano's hand near the complainant's neck for approximately two (2) seconds, and the footage is not indicative of any application of pressure. The Police Commissioner has determined any contact to the complainant's neck was incidental, de minimis in time, and non-injurious.

After the complainant was placed into custody, a separate female interfered with officers as they were attempting to place the complainant into the Department vehicle for transportation to the precinct. The Lieutenant on scene ordered that she be placed under arrest. As officers were attempting to handcuff the female, Police Officer Castellano unholstered his Conducted Electrical Weapon (CEW) briefly, then holstered his CEW upon the female being placed in handcuffs. The Police Commissioner has determined these actions were proper, as Police Officer Castellano was readying a force option during a chaotic and fluid situation, and holstered it once he deemed it was not necessary.

In addition to the CCRB's investigation into this matter, the Department also conducted a parallel investigation which exonerated Police Officer Castellano and found his actions to be within Department guidelines. The Department conducted a comprehensive force investigation, by reviewing all applicable body worn camera footage, interviewed witnesses, complainants, and the officers. The Police Commissioner agrees with the conclusion of the Department's investigation, which determined that Police Officer Castellano utilized the necessary force to gain compliance.

Therefore, because of the parallel investigation and as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegations of wrongful use of force and the allegation of wrongfully threatening an individual with the use of force.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

July 12, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202300635 (Incident Date: January 14, 2023) regarding Police Officer Richard Castellano, Tax No. 957429 (DADS No. 2024-30742)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated July 10, 2024.¹ Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”).

Deputy Chief Marino stated that after reviewing the Charges and Specifications in connection with the present case, you determined that to pursue said charges against Officer Richard Castellano would be detrimental to the Police Department’s disciplinary process. Consequently, you determined that you would be imposing no disciplinary action on Officer Castellano concerning two force allegations, one of which involved a prohibited chokehold, and one threat of force allegation.

We disagree with the Police Commissioner’s determination that Officer Castellano’s conduct did not warrant any penalty. As a preliminary matter, the Department’s conducting an investigation does not preclude CCRB from prosecuting officers’ whose complaints were substantiated. Castellano Letter, Dated July 10, 2024, at 2 (“The Department conducted a comprehensive force investigation [...] Therefore, because of the parallel investigation, [...] the Police Commissioner, [...] retain[s] jurisdiction over this matter”). To the contrary, the MOU reads in relevant part:

¹The CCRB first filed charges and specifications on May 30, 2024. The CCRB received Deputy Chief Marino’s letter via email at 5:51pm on July 10, 2024. The Statute of Limitations in this matter expires on Sunday, July 14, 2024. Under the 2012 Memorandum of Understanding between the Department and CCRB, the CCRB is provided five (5) business days to respond to Department Correspondence concerning retainment. As such, the Department’s late letter, sent after business hours and two (2) business days before the expiration date, ignores an Agreement the parties entered into and harms the Agencies’ ability to effectively communicate its position.

“Notwithstanding the provisions of Paragraph I, in those limited instances where the Police Commissioner determines that CCRB's prosecution of Charges and Specifications in a substantiated case would be detrimental to the Police Department's disciplinary process, the Police Commissioner shall so notify CCRB. Such instances shall be limited to such cases in which there are parallel or related criminal investigations, or when, in the case of an officer with no disciplinary history or prior substantiated CCRB complaints, based on such officer's record and disciplinary history the interests of justice would not be served”

MOU at 1 (emphasis added).

An internal Force Investigation by the Department does not qualify as a parallel *criminal* investigation or proceeding as provided for by the agreement. What's more, Officer Castellano has a prior substantiated CCRB complaint, further precluding him from disciplinary exemption under the other prong of the same MOU provision.

Officer Castellano's conduct was both egregious and deserving of discipline: while the officers were initially justified in stopping and detaining the complainant, a conclusion similarly reached by the investigation, Officer Castellano's subsequent conduct drastically diverged from permissible Department guidelines. After stopping the complainant-motorist for a broken headlight and making the determination to remove him from the vehicle for noncompliance, Officer Castellano proceeded to strike him about the face while the complainant's body was prone on the ground. Officer Castellano did not stop there, visibly employing a prohibited chokehold on the complainant while he lay in the same position. Finally, Officer Castellano escalated the encounter in drawing a Conducted Electrical Weapon (CEW) and pointing it, not in response to resisting arrest, use of force or threat thereof, but because another witness, now in the midst of being detained, did not immediately comply with his demands. In any event, his stated rationale, that she refused to put her hands behind her back, is belied by video showing her hands were already behind her back when the CEW was drawn. All the aforementioned conduct was captured on body-worn camera.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB respectfully requests that you permit the disciplinary process against Officer Castellano to proceed.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite for

Jonathan Darche

Executive Director

NYC Civilian Complaint Review Board



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Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated July 12, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Richard Castellano. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Officer Castellano for the reasons expressed in my July 10, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed against Police Officer Castellano for the alleged misconduct

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office